

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Max Bernstein	Team: Team # 3	CCRB Case #: 201113070	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Saturday, 10/01/2011 4:27 AM	Location of Incident: 78th Precinct and § 87(2)(b)	18 Mo. SOL 4/1/2013	Precinct: 78
Date/Time CV Reported Sun, 10/02/2011 9:13 AM	CV Reported At: IAB	How CV Reported: In-person	Date/Time Received at CCRB Tue, 10/04/2011 2:35 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Eduard Nogol	17002	931851	062 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Eduard Nogol	Force: PO Eduard Nogol used physical force against § 87(2)(b)	A . Complainant Unavailable

Case Summary

On October 2, 2011, § 87(2)(b) filed this complaint in person at the 62nd Precinct station house. The complaint was forwarded to the Internal Affairs Bureau (IAB), generating log# 11-44701. On October 4, 2011, this complaint was spun-off to the CCRB via log# 11-45012. The details noted in the IAB log are summarized below.

On October 1, 2011, at approximately 4:27am, § 87(2)(b) was arrested for § 87(2)(b) (the police report confirms that § 87(2)(b)). § 87(2)(b) stated that after he was arrested, he was brought to the 78th Precinct and the § 87(2)(b) in Brooklyn by Officer Eduard Nogol. Officer Nogol allegedly pushed § 87(2)(b) against a wall, placed his hand around § 87(2)(b)'s neck, and kned him in the back (**Allegation A**). § 87(2)(b) had no physical injuries, nor complaints of pain.

§ 87(2)(b) indicated that Officer Eduard Nogol of the 62nd Precinct was the subject officer in this complaint. § 87(2)(b)'s arrest report confirms that Officer Nogol was § 87(2)(b)'s arresting officer. § 87(2)(g)

A review of the IAB intake CD did not provide any additional contact information for § 87(2)(b). A Lexis Nexis search provided one possible phone number for § 87(2)(b) but that number proved inoperable. A search of the Department of Motor Vehicles database, a Lexis Nexis search, and § 87(2)(b)'s arrest report all provided the same address for § 87(2)(b). On October 7, 2011, and October 20, 2011, please call letters were sent to this address. Both of these letters were returned to the CCRB stamped "return to sender" by the United States Postal Service (USPS). On October 7, 2011, and October 21, 2011, please call letters were also sent to the most current address listed on the Lexis Nexis search that was conducted for § 87(2)(b). To date, § 87(2)(b) has not contacted the CCRB nor have those letters been returned to the CCRB stamped "return to sender" by the USPS. On November 9, 2011, a search of the New York City Department of Correction inmate look-up service determined that § 87(2)(b) is not currently incarcerated. It is therefore recommended that this case be closed as **complainant unavailable**.

Team: _____

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Investigator: _____
Signature _____ Print _____ Date _____

Supervisor: _____
Title/Signature _____ Print _____ Date _____

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date